

Conclusion

The court finds SAMC meets its initial burden to show Plaintiff cannot prove an essential element of medical malpractice. The burden then shifts to Plaintiff to raise a triable issue of material fact, which she fails to do. Therefore, the court grants SAMC's motion for summary judgment.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK **on** 07/21/26
(Judge's initials) (Date)

(49)

Tentative Ruling

Re: ***Khachatryan v. Volkswagen Group of America, Inc. et al.***
Superior Court Case No. 25CECG01565

Hearing Date: July 23, 2026 (Dept. 501)

Motion: By Plaintiff Syuzanna Arseni Khachatryan for Attorneys' Fees

Tentative Ruling:

To grant plaintiffs' motion for attorney's fees, in the amount of \$12,141.25. Payment shall be made by defendant Volkswagen Group of America, Inc. to Quill & Arrow, LLP within 30 days of the clerk's service of this minute order.

Explanation:

Plaintiff Syuzanna Arseni Khachatryan's ("Plaintiff") seeks attorneys' fees in the amount of \$19,095.25 which consists of \$13,613 in lodestar fees, a 1.25 multiplier enhancement on the attorneys' fees, and an additional \$2,079 for time spent on the reply and anticipated time for the hearing. Defendants Volkswagen Group of America, Inc. and CLVW LLC dba Volkswagen of Clovis ("Defendants") oppose the amount requested in the motion.

Right to Recover Attorneys' Fees

An award of attorney fees is proper when authorized by contract, statute, or law. (Code Civ. Proc. §§ 1032, subd. (b), 1033.5, subd. (a)(10).) Here, the Song-Beverly Act authorizes a buyer "to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).) Neither side contests Plaintiff's right to attorneys' fees. Therefore, the only issue is the amount of fees Plaintiff should receive.

Calculating Fees

A court assessing attorney's fees begins with a touchstone or lodestar figure, based on the 'careful compilation of the time spent and reasonable hourly compensation of each attorney . . . involved in the presentation of the case.' (*Serrano v. Priest* (*Serrano III*) (1977) 20 Cal.3d 25, 48.) As our Supreme Court has repeatedly made clear, the lodestar consists of "the number of hours *reasonably expended* multiplied by the *reasonable* hourly rate. . . ." (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095, italics added; *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1134.) The California Supreme Court has noted that anchoring the calculation of attorney fees to the lodestar adjustment method "is the only way of approaching the problem that can claim objectivity, a claim which is obviously vital to the prestige of the bar and the courts.'" (*Serrano III, supra*, 20 Cal.3d at p. 48, fn. 23.)

While the fee awards should be fully compensatory, the trial court's role is not to simply rubber stamp the request. (*Ketchum v. Moses*, *supra*, 24 Cal.4th at p. 1133; *Robertson v. Rodriguez* (1995) 36 Cal.App.4th 347, 361.) Rather, the court must ascertain whether the amount sought is reasonable. (*Robertson v. Rodriguez*, *supra*, 36 Cal.App.4th at p. 361.) However, while an attorney fee award should ordinarily include compensation for all hours reasonably spent, inefficient or duplicative efforts will not be compensated. (*Christian Research Institute v. Alnor* (2008) 165 Cal.App.4th 1315, 1321.) The constitutional requirement of just compensation, "cannot be interpreted as giving the [prevailing party] carte blanche authority to 'run up the bill.'" (*Aetna Life & Casualty Co. v. City of Los Angeles* (1985) 170 Cal.App.3d 865, 880.) The person seeking an award of attorney's fees "is not necessarily entitled to compensation for the value of attorney services according to [his] own notion or to the full extent claimed by [him]. [Citations.]" (*Salton Bay Marina, Inc. v. Imperial Irrigation Dist.* (1985) 172 Cal.App.3d 914, 950.)

The basis for the trial court's calculation must be the actual hours counsel has devoted to the case, less those that result from inefficient or duplicative use of time. (*Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 395, citing *Ketchum v. Moses*, *supra*, 24 Cal.4th at p. 1133.)

Number of Hours Billed

A review of each billing entry shows that most of the time billed by the attorney timekeepers is not excessive. Counsel billed only 31.5 hours for about eight months of work on the case. The amounts of time spent on most of the tasks is also reasonable. Plaintiff is entitled to recover their fees for the time actually and reasonably incurred in prosecuting the action. (Civil Code, § 1794, subd. (d).)

The attached time records show that most of the billing entries are reasonable. (Jacobson Decl., Exh. 26.) However, plaintiffs' counsel claims to have spent a total of 7.2 hours of attorney time to draft and edit the motion for attorney's fees billed at \$495 per hour. (*Ibid.*) However, since Plaintiff's counsel uses templates for their pleadings and motions, including their motions for attorney's fees, it should not have taken 7.2 hours to draft the motion for fees here. The court will only allow plaintiffs to recover four hours to draft the fees motion.

Also, Plaintiff originally requested an additional \$4,000 in anticipatory fees to respond to Defendants' opposition and to attend the hearing. Defendants challenged the amount. Plaintiff's reply included the actual time to complete the reply at 2.2 hours. Plaintiff is additionally requesting 2 hours of time needed to attend and prepare for the hearing. The court will grant the 2.2 hours needed by Plaintiff to prepare the reply and declaration. The court will not grant anticipatory hours for a hearing that might not occur. If a hearing does occur, the court will augment its ruling.

Reasonable Hourly Compensation

Reasonable hourly compensation is the "hourly prevailing rate for private attorneys in the community conducting noncontingent litigation of the same type" (*Ketchum v. Moses*, *supra*, 24 Cal.4th at p. 1133.) Ordinarily, "the value of an attorney's time . . . is reflected in his normal billing rate." (*Mandel v. Lackner* (1979) 92 Cal. App. 3d 747, 761.)

The "experienced trial judge is the best judge of the value of professional services rendered in his court." (*Thayer v. Wells Fargo Bank* (2001) 92 Cal.App.4th 819, 832.) Based on a consideration of various factors, the trial court may rely on its own expertise and knowledge to calculate reasonable attorney fees. (*Niederer v. Ferreira* (1987) 189 Cal. App. 3d 1485, 1507.) "When the trial court is informed of the extent and nature of the services rendered, it may rely on its own experience and knowledge in determining their reasonable value." (*In re Marriage of Cueva* (1978) 86 Cal. App. 3d 290, 300.) The court is not limited to the affidavits submitted by the attorney. (*Melnyk v. Robledo* (1976) 64 Cal. App. 3d 618, 625.)

Here, plaintiffs' counsel seeks hourly rates of \$375 to \$595. Some of these rates are high for Fresno and will be reduced.

"[I]n the 'unusual circumstance' that local counsel is unavailable," a trial court may award an out-of-town counsel's higher rates. (*Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 399.) In such rare cases, the justification for awarding the higher rate is that out-of-town rates are needed "to attract attorneys who are sufficient to the cause." (*Ibid.*) At a minimum, therefore, the party seeking out-of-town rates is required to make a "sufficient showing ... that hiring local counsel was impracticable," and the exception is accordingly inapplicable where "no effort was made to retain local counsel." (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1244.)

Here, plaintiffs have not provided a declaration stating what efforts they made to retain local counsel, or that they were unable to find a local attorney with experience in lemon law to represent them, such that they had to resort to hiring an out-of-town law firm that charges higher rates. In fact, they have not provided any evidence at all on the issue of whether they attempted to retain local counsel before hiring a Los Angeles firm. This is unlike the situation in *Horsford*, where plaintiff presented declarations from multiple attorneys with whom plaintiff had spoken and who declined to represent him. (*Horsford*, *supra*, at pp. 398-399.) Accordingly, the court should award fees based on local rates.

The court finds that the reasonable value of the services of Kevin Jacobson, an attorney admitted to the California Bar in 2018 who possesses substantial experience litigating lemon law matters and who is the managing partner of Quill & Arrow, is \$525 per hour.

The court finds that the reasonable value of the services of Derek Chipman, who was admitted to the California Bar in 2018 and who has substantial experience in lemon law, is \$400 per hour.

The court finds that the reasonable value of the services of Stephen Basinger, who was admitted to the California Bar in 2013 and who has substantial experience in lemon law, is \$525 per hour.

The court finds that the reasonable value of the services of Siyun Yang, who was admitted to the California Bar in 2020 and who has substantial experience in lemon law, is \$350 per hour.

The court finds that the reasonable value of the services of Donald Mahnke, who was admitted to the California Bar in 2020 and who has substantial experience in lemon law, is \$350 per hour.

Finally, the court finds that a reasonable value for the services of Joshua Kohanoff, who was admitted to the California Bar in 2022 and who has substantial experience in consumer law, is \$350 per hour.

Based on 28.3 hours of work done on the case up to the filing of the fees motion, the court sets the lodestar fees at \$10,157.5.

Plaintiff additionally spent 2.2 hours drafting the reply and declaration attached to the reply for an additional \$880.

Thus, total lodestar fees including the cost of the reply are \$11,037.50.

Multiplier

Plaintiffs seek a multiplier of 1.25 to apply to the lodestar. A multiplier enhancement to the lodestar "is primarily to compensate the attorney for the prevailing party at a rate reflecting the risk of nonpayment in contingency cases as a class." (*Ketchum, supra*, 24 Cal.4th at p. 1138.) A multiplier may also be applied where the attorney has shown extraordinary skill, resulting in exceptional results. (*Ibid.*; *Graham, supra*, 34 Cal.4th at p. 582.) Courts have substantial discretion to select the factors they deem relevant to their multiplier analysis. (*Lealao v. Beneficial California, Inc.* (2000) 82 Cal.App.4th 19, 40–41.) The factors include: (1) the novelty and difficulty of the questions involved and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; and (3) the contingent nature of the fee award, based on the uncertainty of prevailing on the merits and of establishing eligibility for the award. (*Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 819.)

Novelty and Complexity of the Issues

In *Blum v. Stenson* (1984) 465 U.S. 886, the Supreme Court discussed what might be a basis for an upward adjustment to the lodestar. (*Blum, supra*, 465 U.S. at p. 886.) The Court noted that certain suggested bases for an upward adjustment were not warranted because they were already reflected in the lodestar. (*Id.* at p. 898.) Specifically, "[t]he novelty and complexity of the issues presumably were fully reflected in the number of billable hours recorded by counsel and thus do not warrant an upward adjustment in a fee based on the number of billable hours times reasonable hourly rates." (*Ibid.*) This was a lemon law case of ordinary complexity. Counsel was appropriately compensated through their time.

The Skill Displayed

In general, "special skill and experience of counsel should be reflected in the reasonableness of the hourly rates." (*Blum, supra*, 465 U.S. at p. 889.) As our Supreme Court has observed, "[t]he factor of extraordinary skill, in particular, appears susceptible to

improper double counting; ... a more skillful and experienced attorney will command a higher hourly rate. (*Ketchum, supra*, 24 Cal.4th at p. 1138-1139.) "Thus, a trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable." (*Id.* at p. 1139.)

Here, the Court has read all of the pleadings filed in this case. The skill displayed by Plaintiff was expected, not extraordinary. Counsel's hourly rates are adequate compensation.

The Contingent Nature of the Case

This is the most important factor in awarding a multiplier. Our Supreme Court has explained: "[The multiplier] for contingent risk [brings] the financial incentives for attorneys enforcing important constitutional rights . . . into line with incentives they have to undertake claims for which they are paid on a fee-for-services basis." (*Ketchum, supra*, 24 Cal.4th at p. 1138.) The court further noted that applying a fee enhancement does not inevitably result in a windfall to attorneys: "Under our precedents, the unadorned lodestar reflects the general local hourly rate for a fee-bearing case; it does not include any compensation for contingent risk ... The adjustment to the lodestar figure, e.g., to provide a fee enhancement reflecting the risk that the attorney will not receive payment if the suit does not succeed, constitutes earned compensation; unlike a windfall, it is neither unexpected nor fortuitous. Rather, it is intended to approximate market-level compensation for such services, which typically includes a premium for the risk of nonpayment or delay in payment of attorney fees." (*Ibid*; see also *Horsford v. Board of Trustees, supra*, 132 Cal. App. 4th at pp. 399-400.) This factor weighs in favor of a multiplier.

Results Obtained

Plaintiff's counsel obtained a good but not excellent result. This factor weighs against a multiplier.

Preclusion of Other Work

Plaintiff's counsel is a firm with many attorneys that handles a large amount of Song-Beverly Warranty cases. Counsel was able to take other work while still handling this case. This factor weighs against a multiplier.

Considering all of the lodestar factors, the court will impose a multiplier in favor of plaintiff, in the amount of 1.1, which compensates counsel for the risk of taking the case on a contingent fee basis, the need to advance costs, and the delay in payment, but also takes into account the fact that the case was a fairly routine lemon law action.

This 1.1 multiplier results in an additional \$1,103.75 in fees. [Multiplier of .1 * \$11,037.50 (lodestar) = \$1,103.75.]

Total Attorney's Fees Awarded

The lodestar of \$11,037.50 and the multiplier enhancement of \$1,103.75, bring the total attorney's fee award to \$12,141.25.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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